

Court No. - 40

Case :- WRIT - C No. - 12618 of 2025

Petitioner :- Sandeep Tiwari

Respondent :- Executive Engineer, (Competent Authority) Vidyut Vitran
Khand-Ii, Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Anurag Sharma, Nilesh Tripathi

Counsel for Respondent :- Alok Mishra, C.S.C.

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Supplementary affidavit filed today be taken on record.
2. Learned counsel appearing on behalf of the respondents is directed to take instructions in the matter.
3. Fix this matter on **1.5.2025, as fresh.**

Order Date :- 25.4.2025

RKK/-

(Dr Y K Srivastava, J)

(Shekhar B Saraf, J)

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Hon'ble Dr. Yogendra Kumar Srivastava, J.

This is a writ petition under Article 226 of the Constitution, wherein the petitioner has made the following primary prayers:

"(i) Issue a writ, order or direction in the nature of certiorari, quashing the recovery notice/citation serial no. 86 Online RC No. 20230102143000236 dated 04.05.2023 of Rs. 7,16,479/- and recovery notice/citation serial no. 87 Online RC No. 20230102143000237 dated 04.05.2023 of Rs. 60,820/- issued by Executive Engineer/respondent no.1 issued directly without issuing final assessment order under clause 6.8 (1)(b) of U.P. Electricity Supply Code, 2005.

(ii) issue a writ, order or direction in the nature of mandamus directing the Respondent No.1 not to initiate coercive process or consequential proceedings against the petitioner in pursuance of inspection report dated 07.01.2023."

Sri Alok Mishra, learned counsel appearing on behalf of the respondent fairly submitted that no final assessment order has been passed.

In light of the above submission, both the recovery notices are quashed and set aside with a direction to the petitioner to appear before the authority concerned on a date to be fixed by the authority for personal hearing. Once the personal hearing is granted to the petitioner, the respondent authority shall be at liberty to pass a final assessment order in accordance with law.

With the above direction the writ petition is disposed of.

Order Date :- 1.5.2025

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(Dr. Y. K. Srivastava, J.) (Shekhar B. Saraf, J.)